

		show she filed her complaint within the statute of limitations. But it is not Plaintiff's burden to allege facts to show her complaint is timely filed. A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. <i>Committee for Green Foothills v. Santa Clara County Bd. of Supervisors</i> (2010) 48 Cal.4th 32, 42. If the dates establishing the running of the statute of limitations do not clearly appear in the complaint, there is no ground for general demurrer. The proper remedy "is to ascertain the factual basis of the contention through discovery and, if necessary, file a motion for summary judgment...." (<i>United Western Medical Centers v. Superior Court</i> (1996) 42 Cal.App.4th 500, 505, 49 Cal.Rptr.2d 682.) <i>Roman v. County of Los Angeles</i> (2000) 85 Cal.App.4th 316, 324–325 (reversing order sustaining demurrer on statute of limitations grounds). <i>See also Geneva Towers Ltd. Partnership v. City of San Francisco</i> (2003) 29 Cal.4th 769, 781 (same); <i>City of Industry v. City of Fillmore</i> (2011) 198 Cal.App.4th 191, 207–208 (same); <i>Marshall v. Gibson, Dunn & Crutcher</i> (1995) 37 Cal.App.4th 1397, 1403 (same). Defendant provides no citation or explanation as to why this standard does not, or should not, apply to for the statute of limitations under Code Civ. Proc. §340.1, 340.11. Accordingly, relief through demurrer is not appropriate.
9.	2024-1417668 Kline v. Lucas	The general and special demurrer by Defendants Los Alamitos Race Course, erroneously sued as Los Alamitos Racetrack, and Dr. Edward C. Allred (collectively, "Demurring parties") to the first cause of action for negligence – premises liability alleged in the Complaint filed

	by Plaintiffs William Kline and Carolyn Kline (collectively, “Plaintiffs”) is sustained in part with 15 days leave to amend and overruled in part. Demurring parties’ request for the Court to take judicial notice of the unsigned application is denied. (<i>Gould v. Maryland Sound Industries, Inc.</i> (1995) 31 Cal.App.4th 1137, 1145 [“the existence of a contract between private parties cannot be established by judicial notice under Evidence Code section 452, subdivision (h).”]; <i>but see, Ascherman v. General Reinsurance Corp</i> (1986) 183 Cal.App.3d 307, 312 [Trial Court properly considered the reinsurance contract to determine whether Plaintiff stated a claim for declaratory relief under the reinsurance contract.]) Although Plaintiffs allege the parties entered into an agreement, there is no showing that this unsigned application <i>is</i> the alleged agreement. Nor is the premises liability cause of action based on a breach of a contractual duty. Demurring Parties’ request to take judicial notice of the regulations, however, is granted. (Evid. Code, §§ 451 and 452; <i>Scott v. County of Los Angeles</i> (1994) 27 Cal.App.4th 125, 145; <i>Kern County v. Coley</i> (1964) 229 Cal.App.2d 172, 180.) First cause of action for negligence – premises liability “The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury.” (<i>Kesner v. Superior Court</i> (2016) 1 Cal.5th 1132, 1158.) As a general rule, one has “no duty to act to protect others from the conduct of third parties.” (<i>Delgado v. Trax Bar & Grill</i> (2005) 36 Cal.4th 224, 235.) Therefore, where a complaint alleges injuries resulting from the criminal acts of third persons, the common law ordinarily does not impose a duty upon a defendant to control the conduct of another or to warn of such conduct. (<i>Romero v. Superior Court</i> (2001) 89 Cal.App.4th 1068, 1079.) An affirmative duty to act may arise, however, where there is a special relationship between the parties. (<i>Delgado v. Trax Bar & Grill</i>, 36 Cal.4th at 235.) Among the commonly recognized special relationships that may give rise to a legal duty in a particular case is that “between a possessor of land and members of the public who enter in response to the landowner’s invitation.” (<i>Peterson v. San Francisco Community College Dist.</i> (1984) 36 Cal.3d 799, 806.) Landowners have a general duty of maintenance to their invitees which requires them “to maintain land in their
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possession and control in a reasonably safe condition.” (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 674.) This duty encompasses a responsibility “to take reasonable steps” to secure the premises against “foreseeable criminal acts of third parties that are likely to occur in the absence of such precautionary measures.” (*Id.*) However, a landowner is not the insurer of the safety of persons on its premises and is not required to take precautions against criminal attacks by third parties that the landowner has no reason to anticipate. (*Anaya v. Turk* (1984) 151 Cal.App.3d 1092, 1099.) Even where a special relationship exists, as in the case of a landowner and invitee, the “duty to take affirmative action to control the wrongful acts of a third party will be imposed only where such conduct can be reasonably anticipated.” (*Ann M. v. Pacific Plaza Shopping Center*, 6 Cal.4th at 676.) “[F]oreseeability is determined in light of all the circumstances and not by a rigid application of a mechanical ‘prior similar’ rule.” (*Frances T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 502.)

Notably, “criminal conduct cannot absolve the defendant of liability where . . . the plaintiff alleges that defendants maintained the property in such a way so as to increase the risk of criminal activity.” (*Peterson v. San Francisco Community College Dist.* (1984) 36 Cal.3d 799, 812.)

The California Supreme Court recognized “the scope of the duty is determined in part by balancing the foreseeability of the harm against the burden of the duty to be imposed . . . ‘In cases where there are strong policy reasons for preventing the harm, or the harm can be prevented by simple means, a lesser degree of foreseeability may be required.’ [Citation.] [Citation.]” (*Ann M. v. Pacific Plaza Shopping Center*, 6 Cal.4th at 678-679; *see also, Delgado v. Trax Bar & Grill*, 36 Cal.4th at 256 (dis. opn. of Kennard, J.) [foreseeability can be based on the prior similar incident approach or the totality of circumstances approach]; *Eric J. v. Betty M.* (1999) 76 Cal.App.4th 715, 721 [presence of miscreants in a particular area may be generally considered a foreseeable risk].)

In *Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, which evaluated *Ann M. v. Pacific Plaza Shopping Center*, the California Supreme Court held a sliding-scale balancing formula recognized the imposition of a high burden required heightened foreseeability, while a minimal burden may be imposed upon a showing of a lesser degree of foreseeability. (*Delgado v. Trax Bar & Grill*, 36 Cal.4th at 243.)

Under the sliding-scale balancing formula,

“First, the court must determine the specific measures the plaintiff asserts the defendant should have taken to prevent the harm. This frames the issue for the court’s determination by defining the scope of the duty under consideration. Second, the court must analyze how financially and socially burdensome these proposed measures would be to a landlord, which measures could range from minimally burdensome to significantly burdensome under the facts of the case. Third, the court must identify the nature of the third party conduct that the plaintiff claims could have been prevented had the landlord taken the proposed measures, and assess how foreseeable (on a continuum from a mere possibility to a reasonable probability) it was that this conduct would occur. Once the burden and foreseeability have been independently assessed, they can be compared in determining the scope of the duty the court imposes on a given defendant. The more certain the likelihood of harm, the higher the burden a court will impose on a landlord to prevent it; the less foreseeable the harm, the lower the burden a court will place on a landlord.” [Citation.] (*Castaneda v. Olsher* (2007) 41 Cal.4th 1205, 1214; *accord*, *Tan v. Arnel Management Co.* (2009) 170 Cal.App.4th 1087, 1097-1098.)

Plaintiffs allege Defendant Lucas entered the Los Alamitos Racetrack located at 4961 Katella Avenue, Cypress, CA 90720 (“Race Track”) through an unrepaired hole cut in the perimeter fence and that the hole was a breach in the perimeter wall. (Complaint, ¶¶ 16 and 17.) Plaintiffs further allege Demurring Parties breached their duty to Plaintiffs by not repairing a breach in the perimeter fence, despite knowledge of the breach. (*Id.*, ¶¶ 16, 20, 22, and 26-29.) Plaintiffs’ Complaint attached a copy of a police report as Exhibit 1 in support of Plaintiffs’ claims. The police report states there was a hole in the fence, but also that the officer reviewed surveillance video and saw a male jumping over the retaining wall of the Race Track. (Complaint, Exhibit 1, Pages 4 and 5.) If the facts “appearing in the exhibits contradict those alleged, the facts in the exhibits

	take precedence.” (<i>Holland v. Morse Diesel Intern., Inc.</i> (2001) 86 Cal.App.4th 1443, 1447.) There are no allegations regarding the insufficiency of the perimeter wall other than the hole, or that Demurring Parties were aware of any deficiencies other than the hole. Accordingly, the general demurrer is sustained with 15 days leave to amend. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (<i>Khoury v. Maly’s of California, Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Errors and confusion created by “the inept pleader” are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. (<i>Saunders v. Cariss</i> (1990) 224 Cal.App.3d 905, 908.) A demurrer for uncertainty should be overruled if the facts are presumptively within defendant’s knowledge. (<i>Khoury</i>, 14 Cal.App.4th at 616.) A party attacking a pleading on “uncertainty” grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. (<i>Fenton v. Groveland Community Services Dept.</i> (1982) 135 Cal.App.3d 797, 809, disapproved on other grounds in <i>Katzberg v. Regents of the University of California</i> (2002) 29 Cal.4th 300.) Here, the first cause of action is not so unintelligible that Demurring Parties cannot reasonably respond. Any ambiguities can be clarified through discovery. (<i>Lickiss v. Financial Industry Regulatory Authority</i> (2012) 208 Cal.App.4th 1125, 1135; <i>Khoury</i>, 14 Cal.App.4th at 616.) To the extent Demurring Parties contend the Complaint does not allege whether the contract between the parties is written, oral, or implied, the agreement is not at issue in the sole cause of action alleged against Demurring Parties. Plaintiffs do not allege a contractual duty is expressly provided in the alleged agreement. Demurring Parties also contend Plaintiffs failed to informally resolve the dispute before commencing this action, citing to 4 CCR § 2043. However, section 2043 involves a controversy relating to an agreement. Although the duty alleged arises from Demurring Parties providing barn and stable services, there is no allegation that Demurring Parties owed any contractual duties to Plaintiffs. Accordingly, the demurrer on this ground is overruled. Demurring Parties shall give notice.
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